

		Given the above, the motion for attorney fees, costs and expenses is GRANTED in the amount of \$16,373.75. Plaintiff to give notice.
108	Robicheaux vs. Rowshan, 2022-01261647	MOTION TO QUASH TRIAL SUBPOENA - CONTINUED
109	Security National Insurance Company v. O.C. Services Inc., 2020-01164470	MOTION FOR ENTRY OF JUDGMENT - CONTINUED Plaintiff, Security National Insurance Company (“Plaintiff”), moves for entry of judgment in favor of Plaintiff, Security National Insurance Company, against Defendants, O. C. Services Inc. aka OC Services Inc. and dba Molly Maid of Newport, and S & C Inc. aka S and C Inc. and dba Molly Maid of Long Beach (collectively, “Defendants”), in the total amount of \$432,914.42, inclusive of prejudgment interest plus the principal sums plus costs of suit and attorney’s fees, pursuant to Code of Civil Procedure section 664.6. Plaintiff contends that this action was settled by way of a written settlement agreement, but that Defendants have defaulted and that the Court should enter judgment in accordance with the terms of the settlement agreement pursuant to Code of Civil Procedure section 664.6. No opposition has been filed. “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc. §664.6(a).)

“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.]” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) “The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal. [Citation.] Such a request must be made either in a writing signed by the parties or orally before the court. [Citation.]” (Ibid.) “A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (Ibid.)

Plaintiff provides an executed copy of the written settlement agreement between Plaintiff and Defendants, which provides, in relevant part:

1. Plaintiff was to have judgment in the principal amount of \$344,890.35, plus prejudgment interest, plus attorney fees and costs;
2. Defendants would pay the discounted amount of \$210,000 in monthly payments to settle the matter.
3. Default in the payments by Defendants would, “after seven days’ written notice of default in the manner and to the address(es) set forth in Section 3.M. hereinbelow” entitled Plaintiff to apply for entry of judgment.
4. Notices under the settlement agreement were to be made by “first class mail.”

		According to the declaration in support of the motion for entry of judgment, Defendants made payments under the terms of the settlement agreement in the sum of \$155,000, but neither the November 1, 2025 payment nor any subsequent payments have been made. (Aires Decl., ¶ 6.) Therefore, Plaintiff's counsel sent a default letter to Defendants. (Id., Ex. B.) Counsel's declaration does not specify that the default letter was sent via first class mail as opposed to only by email. Plaintiff's motion for entry of judgment is CONTINUED to July 13, 2026 at 9:00 a.m. in Department N14. Plaintiff shall file and serve evidence establishing proper written notice of default pursuant to the terms of the Settlement Agreement. Said evidence to be filed and served no later than nine (9) court days before the continued hearing date. No other briefing is allowed or will be considered. Plaintiff to give notice.
110	Schiffer v. Spencer, 2026 - 01544448	Applications for Right to Attach Orders and Orders for Issuance of Writs of Attachment - DENIED. Upon the filing of a complaint or anytime thereafter, a plaintiff may apply for a right to attach order and writ of attachment. (Code Civ. Proc., § 484.010.) Following a hearing on the application, the court shall issue a right to attach order if it finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based; (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) The amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a).)